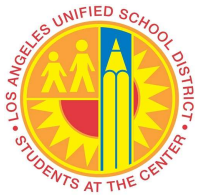


TAB 12



Los Angeles Unified School District

158

333 South Beaudry Ave,
Los Angeles, CA 90017

Board of Education Report

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File #: Min-002-22/23, **Version:** 1

Minutes for Board Approval (Min-002-22/23)

January 25, 2022, Special Board Meeting, 1:00 p.m.

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

SPECIAL MEETING MINUTES
333 South Beaudry Avenue, Board Room
1 p.m., Tuesday, January 25, 2022

The Board of Education of the City of Los Angeles, acting as the Governing Board of the Los Angeles Unified School District, met in special session on Tuesday, January 25, 2022, at the Los Angeles City Board of Education Administrative Offices, Board Room, 333 South Beaudry Avenue, Los Angeles, California and via teleconference as allowed by California Executive Order N-29-20 which suspends specific provisions of the Open Meeting Laws.

The meeting to order at 1:25 p.m.

The following Board Members were present: Ms. Mónica García, Ms. Jackie Goldberg, Mr. Nick Melvoin, Ms. Ortiz Franklin, and Mr. Scott Schmerelson. Dr. George McKenna, III and Board President Kelly Gonez joined the meeting via teleconference.

Student Board Member Parish Kanuga joined the meeting via teleconference.

Superintendent Megan K. Reilly was present.

Opening remarks were heard from Ms. Gonez.

Thomas Tedla, a third grade student at Beckford Charter Elementary School, led the Pledge of Allegiance.

BOARD PRESIDENT'S REPORTS

LABOR PARTNERS

Mr. Nery Paiz, Associated Administrators Los Angeles (AALA), addressed COVID-19 related concerns, including testing schedules, stipends for administrators, and the impact of the increased workloads on employees.

Mr. Juan Ramirez, United Teachers Los Angeles (UTLA), discussed the need for the District to protect neighborhood schools from the impact of charter school growth.

STUDENT VOICES

In recognition of Martin Luther King, Jr. Day which was celebrated on January 17, 2022, three students shared their thoughts on how the holiday resonates with them. The students were Jessica Ojukwu, a senior at King Drew Medical Magnet; Nate Shin, a junior at North Hollywood High School; and Jaily Johnson, a junior at King Drew Middle Magnet.

ACKNOWLEDGEMENT OF CARLSTON FAMILY FOUNDATION
2021 OUTSTANDING TEACHER OF AMERICA AWARD RECIPIENT
KIRSTEN FARRELL

Mr. Melvoin welcomed Ms. Kirsten Farrell to the meeting and congratulated her on her accomplishment. Ms. Farrell is the recipient of the Carlston Family Foundation 2021 Outstanding Teacher of America Award. In order to be considered for this award, teachers must be nominated by former students who believe their former teachers have had a life changing impact on their lives, academically and professionally. Ms. Farrell is a teacher at Venice High School, where she developed the first Sports Medicine Academy in the District.

Remarks were heard from Dr. Beverly Young, Executive Director, Carlston Family Foundation, regarding the foundation and the award.

Ms. Farrell thanked the foundation for the grant and the District for the recognition.

Remarks were also heard Ms. Ariel Guldstrand, the former student that nominated Ms. Farrell.

CONSENT ITEMS

Items for action below to be adopted by a single vote:

NEW BUSINESS FOR ACTION:

BOARD OF EDUCATION REPORT NO. 177 – 21/22
Teamsters Local 572 - LAUSD Memorandum of Understanding

BOARD OF EDUCATION REPORT NO. 184 – 21/22
California School Employees Association and its Los Angeles Chapter 500 - LAUSD
Memorandum of Understanding

BOARD OF EDUCATION REPORT NO. 185 – 21/22
LAUSD - Associated Administrators of Los Angeles Sideletters for COVID-19 Related Duties

BOARD OF EDUCATION REPORT NO. 154 – 21/22
Procurement Actions

BOARD OF EDUCATION REPORT NO. 137 – 21/22
Facilities Contract Actions

BOARD OF EDUCATION REPORT NO. 223 – 21/22
Resolution Making Certain Findings to Permit Meetings to Be Held Through Teleconferencing
Pursuant to Assembly Bill 361 and in Compliance with Government Code Section 54953(e)(3)

BOARD OF EDUCATION REPORT NO. 182 – 21/22
Report of Cash Disbursements

BOARD OF EDUCATION REPORT NO. 173 – 21/22
Routine Personnel Actions

BOARD OF EDUCATION REPORT NO. 197 – 21/22
Amendment to Instructional Calendar 2021-2022 to Declare January 10, 2022 as a
Pupil Free Day for All Schools

BOARD OF EDUCATION REPORT NO. 178 – 21/22
Approval of Community Advisory Council (CAC) Membership

BOARD MEMBER RESOLUTIONS FOR ACTION:

Ms. García, Mr. Melvoin, Ms. Gonez, Ms. Ortiz Franklin, Ms. Kanuga - Dedicate and Name the Wellness Center at Felicitas and Gonzalo Mendez High School as The Sylvia Mendez Wellness Center (Res-015-21/22) (Noticed December 14, 2021)

Whereas, In 2009 the Governing Board of the Los Angeles Unified School District voted to name the first high school to be built in more than 85 years in Boyle Heights after two civil rights leaders, Felicitas and Gonzalo Mendez;

Whereas, In 1943, the children of Felicitas and Gonzalo Mendez were denied access to a California school and the Mendez's fought against this prejudice and segregation in the landmark case, Mendez v. Westminster School District in 1946;

Whereas, Sylvia Mendez at eight years of age played a critical role in the court case, resulting in the desegregation of schools in California;

Whereas, Sylvia Mendez continued her parents' legacy of courage and activism and was awarded the Presidential Medal of Freedom in 2011 for her role in paving the way for Brown v. Board of Education, bringing end to the racial segregation in schools in the United States; and

Whereas, The construction of the Wellness Center at Mendez High School is scheduled to be completed in the first quarter of 2022, providing much needed services to the community; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby dedicates and designates the Wellness Center at Mendez High School to be The Sylvia Mendez Wellness Center in honor of the 75th anniversary of the Mendez v. Westminster case and Sylvia Mendez's role in fighting for equity, access and justice for all.

Dr. McKenna, Ms. García, Mr. Schmerelson, Mr. Melvoin, Ms. Goldberg, Ms. Gonez, Ms. Ortiz Franklin, Ms. Kanuga – Celebrating Black History Month (Res-020-21/22) (Waiver of Board Rule 72)

Whereas, Black History Month, or National African American History Month, is an annual celebration of achievements by Black Americans and a time for recognizing the central role of African Americans in United States history;

Whereas, Carter G. Woodson, a Harvard trained historian, like W.E.B. DuBois before him, believed that truth would not be denied and that reason would prevail over prejudice, and as a result, announced "Negro History Week" in 1925 to raise awareness of the contributions of African Americans;

Whereas, It is commonly stated that Carter G. Woodson selected February as the month to host “Negro History Week” because it encompasses the birthdays of two great Americans who played a prominent role in shaping black history, namely Abraham Lincoln and Frederick Douglass, whose birthdays are February 12th and 14th respectively;

Whereas, Carter G. Woodson believed that history was created by great people and not simply great men; he envisioned the study and celebration of Black people as a race, not simply as the producers of great men and emphasized the contributions of countless Black men and women who contributed to the advancement of human civilization;

Whereas, Since 1976, the commemoration was extended from a week-long event to the entire month of February;

Whereas, The legacy of Carter G. Woodson lives on in the continued work of the Association for the Study of African American Life and History (ASALH), an organization now in its 106th year;

Whereas, The 2022 theme for Black History Month established by the ASALH is “Black Health and Wellness;”

Whereas, This theme acknowledges the legacy of not only Black scholars and medical practitioners in Western medicine but also other ways of knowing (e.g., birth workers, doulas, midwives, naturopaths, herbalists, etc.) throughout the African Diaspora. The 2022 theme considers activities, rituals, and initiatives that Black communities have used to be well;

Whereas, The Black family has been disproportionately affected by the COVID-19 virus because of the lack of health equity and a lack of understanding and appropriately addressing the needs of all populations;

Whereas, The Black community offers a rich tapestry of health professionals such as James McCune Smith, Rebecca Lee Crumpler, Mary Eliza Mahoney, Daniel Hale Williams, Solomon Carter Fuller, Charles R. Drew, Otis Boykin, Jane Cook Wright, Jocelyn Elders, and Kizzmekia Corbett to name a few; and

Whereas, Our democracy’s founding ideals were false when they were written, but Black Americans have continuously fought to make them true; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District recognizes February as National Black History Month;

Resolved further, That the Board acknowledges that all people of the United States are beneficiaries of the wealth of Black medical professionals and essential workers;

Resolved further, That the Board direct the Superintendent to ensure our working groups, departments, and divisions work to identify strategies and tactics to align resources targeted toward championing preventive care and focus on body positivity, physical exercise, nutrition, emotional and mental health along with our anti-racist educational practices and closing the gap of academic achievement outcomes for Black Students; and, be it finally

Resolved, That the Superintendent will work with educators, librarians, all the schools of the District, and our wider community to recognize and celebrate this month with culturally relevant and appropriate curriculum, programs, ceremonies, and activities that generate in-depth discussion of the complex factual history of the United States and the legacy of Black Americans.

RESOLUTIONS REQUESTED BY THE SUPERINTENDENT:

Reappointment of Member of the Personnel Commission (Paller) (Sup Res 008-21/22)

Resolved, That the Governing Board of the Los Angeles Unified School District reappoints Joseph L. Paller, Jr. as a member of the Personnel Commission of the Los Angeles Unified School District for a three-year term pursuant to California Education Code Section 45245.

Appointment of Alternate Member to the School Construction Bond Citizens' Oversight Committee (Boggio) (Sup Res 009-21/22)

Resolved, That the Governing Board of the Los Angeles Unified School District ratifies the appointment of Mr. Chad Boggio, representing the Los Angeles County Federation of Labor, AFL-CIO, as an alternate to the School Construction Bond Citizens' Oversight Committee for a two-year term commencing immediately. Mr. Boggio is not an employee, official, vendor, contractor, or consultant of the District.

CORRESPONDENCE AND PETITIONS:

Report of Correspondence (ROC-006-21/22)

MINUTES FOR BOARD APPROVAL:

May 18, 2021, Special Board Meeting, 9:00 a.m.

Ms. García moved that the Consent Items be adopted and Mr. Melvoin seconded the motion.

The following speakers addressed the Board on Consent Items:

Ms. García, Mr. Melvoin, Ms. Gonez, Ms. Ortiz Franklin, Ms. Kanuga - Dedicate and Name the Wellness Center at Felicitas and Gonzalo Mendez High School as The Sylvia Mendez Wellness Center (Res-015-21/22)

Mauro Bautista, Mendez High School
Emily Grijalva, Mendez High School

Superintendent Reilly responded to questions from Mr. Melvoin regarding instructional calendars for upcoming years.

Ms. García invited all to attend the ribbon cutting ceremony for The Sylvia Mendez Wellness Center. She also highlighted that this year is the 75th anniversary of Mendez v. Westminster, the first case to hold that school segregation itself is unconstitutional and violates the 14th Amendment.

Remarks were heard from Dr. McKenna regarding Black History Month. The 2022 theme for Black History Month is “Black Health and Wellness”. The health and wellness practices of Black people have laid the foundation for key contributions in the advancement of modern science and medicine throughout history.

After discussion and on roll call vote, the Consent Items were adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

SUPERINTENDENT’S REPORTS

ENSURING A SAFE RETURN TO SPRING SEMESTER

Superintendent Reilly thanked school site workers and all other employees that contributed to a successful reopening of schools for the Spring semester. Keeping schools safe remains a top priority for the District. Students and families were provided with at home COVID-19 testing kits, surgical masks, and other needed supplies at the 63 Grab and Go sites over the winter break.

The District made a number of pivots over the winter break to get safety protocols in place based on changing conditions, including the Omicron variant. The District has added extra layers of protection, including baseline testing, continued weekly testing through February, upgraded masks for students and employees. The District continues to maintain the highest COVID-19 safety standards of any public school district in the nation. This has resulted in the District having a lower positivity rate than Los Angeles County. The District will continue to be resilient and responsive to changing conditions of pandemic.

Remarks were heard from Dr. David Baca, Chief of Schools, regarding the Spring reopening of schools. A video highlighting the return to school was presented.

Dr. Baca reviewed the glows, grows, and best practices related to the Spring 2022 reopening of schools. Glows included open and safe schools, exceptional leadership by all staff, declining positivity rates, gradual improvement in student attendance, and support of Central Office and Local District staff by working at school sites. Areas of challenge that require growth are community engagement and contact tracing have been time and labor intensive, intermittent outages of the Daily Pass system, staffing gaps caused by the deployment of central and local district staff to school sites, and long lines at testing sites. Best practices include leveraging all lessons learned from the reopening, Zoom access for students at home in quarantine, support from Communities of Schools and Local District teams to meet local needs, consistent and personalized communication and family engagement, and focus on instruction and outcomes.

More information about Spring opening safety policies and practices, including frequently asked questions can be found at <https://achieve.lausd.net/spring2022>.

Mr. Anthony Aguilar, Chief of Special Education, Equity, and Access highlighted the safety measures the District enacted for reopening schools, including upgraded air filtration systems, enhanced cleaning, required use of face masks, school-based COVID-19 testing, and vaccinations for the community. As of January 25, 2022, approximately 89 percent of students 12 and older are in compliance with the vaccine mandate and 100 percent of employees and contractors on school campuses are fully vaccinated.

Dr. Smita Malhotra, Medical Director, emphasized the importance of being vaccinated and boosted. According to the Centers for Disease Control and Prevention, unvaccinated people are six times more likely to contract COVID-19, nine times more likely to be hospitalized due to COVID-19, and 14 times more likely to die from the virus than fully vaccinated people. Information on booking vaccine appointments can be found at <https://achieve.lausd.net/covid>.

Mr. Aguilar announced that ongoing weekly COVID-19 testing will continue through February 2022 for students and employees regardless of vaccination status. Positivity rates for students and employees are declining. Baseline testing reflected a positivity rate of 16.5 percent. The overall positivity rate dropped to 9.8 percent in week 1 of school and 7.8 percent in week 2. Students will be required to wear a non-cloth mask with a nose wire at all times, including while participating in athletic activities. Schools will provide masks to students and employees that need them.

All TK-12 close contact students will remain on campus as long as they remain asymptomatic and participate in weekly testing. Families will not receive close contact notifications, but can review daily case count updates for their school at <https://achieve.lausd.net/covidreportcard>. Students may participate in sports and before and after school activities as long as they are asymptomatic, test negative, and are wearing the required mask.

Dr. Malhotra reviewed the steps to take if your child is a close contact at school. Students that test positive should isolate immediately and follow home isolation protocols. Students exposed to COVID-19 outside of school must quarantine at home unless they are fully vaccinated or recovered from COVID-19 in the last 90 days. The latest guidance regarding close contacts and exposure can be found at <https://achieve.lausd.net/spring2022>.

Ms. Veronica Arreguin, Chief Strategy Officer, shared that student attendance rates are increasing. Student attendance grew from 66.2 percent in week 1 to 74.7 percent in week 2.

Mr. Aguilar responded to questions from Mr. Schmerelson regarding allowable mask types and reasons for noncompliance with the student vaccination requirement.

Mr. Schmerelson requested information regarding the numbers of special education students enrolled on campus and in the City of Angels program.

Remarks were heard from Mr. Schmerelson and Superintendent Reilly regarding the importance of school office staff and early education center staff.

Mr. Aguilar and Superintendent Reilly responded to questions from Ms. Goldberg regarding close contact protocols and student absences.

Ms. Arreguin and Mr. Aguilar responded to questions from Ms. Ortiz Franklin regarding communicating the importance of attendance and chronic absenteeism.

Remarks were heard from Mr. Melvoin regarding communication of guidance from the County and State to families.

Ms. Arreguin responded to questions from Mr. Melvoin regarding the types of students included in attendance percentages and excused and unexcused absences.

Remarks were heard from Mr. Schmerelson regarding misleading social media posts from parents and the need for the District to offer information in various forms and contexts.

Remarks were heard from Ms. Gonez regarding providing information to families that are not technology based.

- - -

President Gonez modified the Order of Business.

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BOARD MEMBER RESOLUTIONS FOR ACTION

Ms. García moved the following resolution:

Ms. Garcia, Mr. Melvoin, Ms. Gonez – Arts and Education California Ballot Measure (Res-019-21/22) (Waiver of Board Rule 72)

Whereas, Access to arts and music education at school is a critical component of P-12 education;

Whereas, Studies demonstrate the importance of arts and music education in the development of children and their success in school and in life. Arts and music education improves cognitive development, reasoning, and language acquisition, it correlates with higher student achievement in reading and math, and it leads to increased school attendance;

Whereas, Participating in the arts is especially vital now to support students' mental wellbeing amidst the ongoing impact of COVID-19;

Whereas, Black and Hispanic students comprise 61 percent of P-12 enrollment in the state of California, 77 percent in low-income communities. An increase in opportunities for students of color to participate in the arts in school will expand the pipeline of students who are on the pathway to careers in media and technology; and

Whereas, Schools serving low-income communities would receive even more funding, helping Black and Latino children who are most likely to lack access to arts education. School funding for the arts will increase by more than \$800 million each year and arts programs in schools will grow by more than 50 percent; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District supports the proposed California ballot measure, "The Arts and Music in Schools - Funding Guarantee and Accountability Act" that increases funding in the Arts and Music education in every P-12 school in the state of California.

Mr. Melvoin seconded the motion.

Ms. García welcomed Mr. Austin Beutner, Chairman, Californians for Arts and Music Education in Public Schools, to the meeting.

Mr. Beutner asked the Board for their support in for a proposed ballot measure that will increase arts and music education funding in California's K-12 public schools. The proposed ballot measure, Arts and Music in Schools, would increase funding for arts and music programs in K-12 schools by

approximately \$800 million annually, nearly double the current funding allocation. Schools that serve higher numbers of low income Black and Latinx students would receive a higher percentage of the funding.

A video highlighting arts education in the District was presented. A video of a conversation between Mr. Beutner and teachers regarding the proposed ballot measure was also presented. Lastly, a video of coalition members discussing the measure was presented.

Ms. García thanked Mr. Beutner for his presentation.

Mr. Beutner responded to questions from Ms. García and Ms. Goldberg regarding equity, timelines, funding source, impact on Proposition 98, sunset date, educational continuity, and flexibility.

Remarks were heard from Ms. Goldberg and Mr. Melvoin regarding support for the measure, previous reductions to arts education, taxes, corporate wealth, and need for arts teachers.

Mr. Beutner responded to questions from Ms. Kanuga regarding student input.

Mr. Beutner and Superintendent Reilly responded to questions from Ms. Ortiz Franklin regarding staffing and opposition to the proposed ballot measure.

Remarks were heard from Mr. Schmerelson, Dr. McKenna, and Ms. Gonez regarding support for the proposed ballot measure.

The following speakers addressed the Board:

Day Son, Advancement Project California
Michelle Aranda Coss, InnerCity Struggle

After discussion and on roll call vote, the resolution was adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

Mr. Beutner thanked the Board for their support.

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President Gonez resumed the Order of Business.

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OLD BUSINESS FOR ACTION

BOARD OF EDUCATION REPORT NO. 073 – 21/22 Approval of the Proposed Charter Policy Amendments to the LAUSD Policy and Procedures for Charter Schools

Ms. García moved that the report be adopted. Ms. Gonez seconded the motion.

The following speakers addressed the Board:

Erin Studer, CHIME Institute

Keith Dell'Aquila, California Charter Schools Association (CCSA)
 Dr. Brooke Rios, New Los Angeles Charter School
 Carrie Wagner, Girls Athletic Leadership School Los Angeles
 Alfredo Rubalcava, Magnolia Public Schools
 Cristina de Jesus, Green Dot Public Schools California
 David Tokofsky

Ms. Ortiz Franklin moved the following amendment revising Pages 20 and 41 of the Policy and Procedures for Charter Schools:

To help determine the extent to which the proposed new charter school substantially undermines existing services, academic offerings, or programmatic offerings in a community, the ~~petitioner~~ District shall assess the current state of enrollment and space capacity of the District schools and charter schools in the community. The funding formula for TK/K-12 schools in California is highly dependent on Average Daily Attendance (ADA), and resources are critical to any school's ability to implement its programs for the benefit of students. ~~Thus, the petitioner's assessment of the community impact of its petition must consider the enrollment trends of the existing District schools and charter schools in the community.~~ The enrollment trend analysis will include whether District and charter schools in the community are at, under, or over their enrollment target or capacity.

Ms. Goldberg seconded the motion.

Remarks were heard from Mr. Jose Cole-Gutierrez, Director, Charter Schools Division, and Ms. Ortiz Franklin regarding the staff's role in providing an enrollment analysis and resources for petitioners.

After discussion and on roll call vote, the amendment was adopted, 6 ayes; and 1 abstention, Dr. McKenna.

Later in the meeting, Ms. Kanuga recorded an advisory vote of aye.

Ms. Ortiz Franklin moved the following amendment revising Page 41 of the Policy and Procedures for Charter Schools:

While there is no applicable statutory or regulatory timeline governing when the chartering authority (i.e., LAUSD Board) must consider the request for a material revision, CSD staff will ~~strive to~~ present its recommendations to the LAUSD Board for consideration within 120 days after processing has commenced, ~~which will depend on the facts, circumstances, and complexity of the review.~~

Ms. García seconded the motion, which on roll call vote was adopted, 7 ayes.

Later in the meeting, Ms. Kanuga recorded an advisory vote of aye.

Ms. Ortiz Franklin moved the following amendment revising section 4 on Pages 41-42 of the Policy and Procedures for Charter Schools:

District staff and petitioners will have three minutes each to make a presentation for items placed on discussion. Either District staff or petitioner may forego providing a presentation to the LAUSD Board. Denial recommendations will not be placed on the consent agenda and

petitioners will have three minutes to make a presentation, unless petitioners waive. The LAUSD Board may ask District staff and petitioners follow up questions regarding the recommendation.

Mr. Melvoin seconded the motion.

Ms. Ortiz Franklin responded to questions from Ms. Goldberg regarding the consent calendar.

Remarks were heard from Mr. Cole-Gutierrez, Ms. Gonez, and Ms. Ortiz Franklin regarding equivalent time and terms for material revisions.

After discussion and on roll call vote, the amendment was adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

Ms. Ortiz Franklin moved the following amendment revising Pages 25 and 41 of the Policy and Procedures for Charter Schools:

A charter school that is considering revisions to its approved charter concurrent with the renewal should contact the assigned CSD administrator in advance of submitting a renewal petition. ~~While~~ If a request for a material revision ~~may be~~ is submitted at the same time as a renewal petition, the renewal petition and the request for a material revision will be ~~separately~~ reviewed and recommended for LAUSD Board action, ~~consistent with applicable law~~ at the same meeting, to the extent possible.

Mr. Melvoin seconded the motion.

Mr. Cole-Gutierrez and Ms. Ortiz Franklin responded to questions from Ms. Goldberg regarding the history of the practice and timelines.

Remarks were heard from Ms. Gonez regarding timelines.

After discussion and on roll call vote, the amendment was adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

Ms. Ortiz Franklin moved the following amendment revising Page 26 of the Policy and Procedures for Charter Schools:

Within 90 days of receipt of the renewal petition, the LAUSD Board shall hold a public hearing at which it will either grant or deny the renewal petition. The LAUSD Board may approve a renewal petition with or without ~~conditions and/or~~ benchmarks.

Mr. Melvoin seconded the motion.

Mr. Cole-Gutierrez and Ms. Devora Navera Reed, General Counsel, responded to questions from Ms. Goldberg and Ms. Gonez regarding the difference between conditions and benchmarks, the impact of the amendment, and past use of conditions.

After discussion and on roll call vote, the amendment was adopted, 4 ayes; 1 no, Mr. Schmerelson; 2 abstentions, Dr. McKenna and Ms. Goldberg.

Ms. Kanuga recorded an advisory vote of aye.

Ms. Goldberg moved the following amendment revising Pages 8 and 19 of the Policy and Procedures for Charter Schools:

The Community Impact Assessment will be ~~primarily~~ based on an analysis of publicly available information and data (e.g., LAUSD OpenData, LAUSD Unified Enrollment program data, official data from the California Department of Education's website, etc.) and on evidence of community engagement and outreach. Petitioners shall clearly cite and provide sources for all data and information used to inform assertions in their Community Impact Assessment.

Ms. Ortiz Franklin seconded the motion.

Ms. Goldberg responded to questions from Ms. García regarding the rationale of the amendment.

Remarks were heard from Ms. Ortiz Franklin and Mr. Cole-Gutierrez in support of the amendment.

After discussion and on roll call vote, the amendment was adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

Ms. Goldberg moved the following amendment revising Page 46 of the Policy and Procedures for Charter Schools:

District staff will examine the reasonableness and comprehensiveness of the petitioner's Community Impact Assessment pursuant to this section (and in the District's new petition application materials) including but not limited to providing an enrollment trend analysis. Moreover, staff will also analyze the impact of the proposed new charter school to existing District schools, and to the extent practicable, existing charter schools, in the proposed community. This may include but is not limited to impacts of birth rates, number of school-aged students, and migration in the community of interest, as data are available. In addition, District staff will analyze the impact of the charter school to existing District schools' proposed programs that are in the planning stages or will commence the same academic year as the petitioning charter school. Such programs could include schools becoming magnets, dual language, community school, HEET, or other program that would be negatively affected by a new, expanding or relocating charter school.

Ms. Ortiz Franklin seconded the motion.

Remarks were heard from Ms. Goldberg and Superintendent Reilly regarding the amendment.

Remarks were heard from Mr. Melvoin in support of the amendment.

Ms. Navera Reed responded to questions from Mr. Cole-Gutierrez regarding statutory limitations.

Remarks were heard from Ms. Gonez and Superintendent Reilly regarding documentation and analysis.

Remarks were heard from Mr. Melvoin and Ms. Gonez regarding the creation of pathways and expansion of programs.

After discussion and on roll call vote, the amendment was adopted, 7 ayes.

Ms. Kanuga recorded an advisory vote of aye.

Remarks were heard from Mr. Cole-Gutierrez regarding assessment and analysis responsibilities and co-location policy.

Mr. Cole-Gutierrez responded to questions from Ms. García regarding the charter school collaborative.

Remarks were heard from Ms. García and Ms. Goldberg regarding identification and sharing of best practices and the impact of change.

Mr. Cole-Gutierrez responded to questions from Ms. García regarding alternative options to co-location.

Remarks were heard from Mr. Melvoin regarding incorporating charter schools into Communities of Schools, pathways and communication regarding co-locations alternatives.

Remarks were heard from Ms. Goldberg regarding giving guidance to petitioners on evidence of community engagement and opportunities for community input.

Ms. García moved the following amendment revising the Policy and Procedures for Charter Schools to include:

Furthermore to assist in the process of proactively identifying and addressing emerging trends within the charter school environment as well as conducting periodic reviews of the policy and issues with its implementation, the Charter School Collaborative will meet regularly to address such topics as promising practices, pending changes in state legislation policies, and issues in the state-wide and LAUSD school community.

Mr. Melvoin seconded the motion.

Remarks were heard from Superintendent Reilly regarding a comprehensive assessment of community needs, community input, localizing needs, and timelines. She recommended that this amendment be withdrawn and her office given 30 days to develop a plan. Ms. García agreed and the amendment was withdrawn.

Following discussion and on roll call vote, the report was adopted as amended, 7 ayes.

Ms. Kanuga was absent.

NEW BUSINESS FOR ACTION

BOARD OF EDUCATION REPORT NO. 183 – 21/22

Proposition 39 Charter Facilities Compliance for the 2022-2023 School Year –
 Finding and Written Statements of Reasons Why Certain Charter Schools Cannot be
 Accommodated on a Single School Site

Ms. García moved that the report be adopted with the amendment to withdraw Attachment 16, Magnolia Science Academy 2 Findings, from Attachment B. Mr. Schmerelson seconded the motion.

The following speakers addressed the Board:

Daniel Epstein, North Valley Military Institute
 Chris A. Pulos, North Valley Military Institute
 Jeannette Ballesteros, North Valley Military Institute
 Abiezer Vasquez, Student
 Julie Ward, Parent
 Christina Rojas, Parent

Mr. Cole-Gutierrez responded to questions from Ms. Goldberg, Mr. Schmerelson, and Mr. Melvoin regarding the reason for the withdrawal of Attachment 16, the possibility of an exemption from locating schools on multiple sites based on program, collaboration, impediments to communication with the District, regulatory processes, and alternative agreements.

Remarks were heard from Dr. McKenna, Mr. Melvoin, and Superintendent Reilly regarding guidelines, process, political influence, and alternative agreements.

Mr. Cole-Gutierrez responded to questions from Ms. Gonez regarding reasons a charter cannot be accommodated on a single site and timelines for alternative agreements.

After discussion and on roll call vote, the report was adopted as amended, 6 ayes; 1 no, Mr. Schmerelson.

Ms. Kanuga was absent.

BOARD OF EDUCATION REPORT NO. 171 – 21/22

Provisional Internship Permits

Ms. García moved that the report be adopted. Mr. Melvoin seconded the motion, which on roll call vote was adopted, 7 ayes,

Ms. Kanuga was absent.

BOARD MEMBER RESOLUTIONS FOR INITIAL ANNOUNCEMENT

The following resolutions will be for action at the February 8, 2022 Regular Board Meeting:

Ms. Ortiz Franklin - Black Student Excellence through Educator Diversity, Preparation and Retention (Res-014-21/22)

Whereas, The Governing Board of the Los Angeles Unified School District has demonstrated its commitment to advancing Black student achievement through unanimously adopting the Black Student Achievement Plan and the resolutions Strategic Priorities for Elevating and Advancing Black Student Success (Res-011-20/21) and Making Good on Los Angeles Unified School District's Commitment to All Students: Maximizing the Talents and Gifts of African American Students by Putting Equity into Action (Res-025-18/19);

Whereas, Local leaders across our District have committed to addressing the needs of our Black students through comprehensive targeted supports to reflect the high expectations and fervent belief in our Black students, such as the HEET (Humanizing Education for Equitable Transformation) Initiative, the Validated Plan and the Black Students Matter initiative;

Whereas, The District must continue to prioritize Black student achievement as only 28.2 percent of Black students who graduated from District high school in 2019-2020 are eligible for UC and/or CSU admission compared to 37.7 percent of all students, according to the District Equity Scorecard;

Whereas, District data documents that out of 32,609 employees, only 3,404 (10 percent) are Black or African American, and out of 22,097 teachers, only 1,889 (9 percent) are Black or African American;

Whereas, District data illustrates the variability of representation across Local Districts, which could impact whether a Black student has access to a Black educator during their school career;

Whereas, Research documents that Black principals and Black teachers positively impact Black student academic performance and experiences, including reading, math, attendance rates, enrollment in advanced courses and gifted programs, and lower dropout and suspension rates; and

Whereas, The State of California proposed over \$2.9 billion in the 2021-2022 budget to support educator initiatives, such as teacher residencies, recruitment, and retention with over \$400 million for teacher training programs, including those aimed at bringing in teachers of color; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District commits to the importance of diversity, preparation, and retention in the District educator workforce, with a specific emphasis on increasing the number of Black leaders and administrators, as well as Black teachers, including gender equity, in the District to improve representation, relationships, and student outcomes;

Resolved further, That the Board directs the Independent Analysis Unit (IAU) to prepare and present to the Board within 60 days an initial analysis (to be repeated annually by District staff) of such gaps at the District, Community of Schools, and school site level, including but not limited to the following indicators:

- Hiring rates of teachers and administrators;
- Average teacher and principal tenure at schools;
- Teacher years of experience (overall time as a teacher in District);
- Promotion rates of teachers and principals;
- Perceptions of job satisfaction and support;
- and any other relevant factors that may impact Black student achievement;

Resolved further, That the Superintendent will evaluate the District's commitment to diversity, equity, and inclusion, informed by the IAU's report, and assess the District's capacity and take all necessary steps to fully carry out the vision, goals, and strategies to achieve Black student excellence through educator diversity, preparation and retention; and, be it finally

Resolved, That the Board directs the Superintendent to develop and present a strategic plan, in alignment with the Black Student Achievement Plan and Board Goals that creates cohesion across all levels of the District, within 90 days of receiving the Independent Analysis Unit report, on how the District will achieve Black student excellence through educator diversity, preparation and retention through the following ways:

- Develop specific measures on target goals to increase the number of Black senior/executive leaders, Black administrators, Black leaders in Student Mental Health, and Black teachers in the District;
- Collaborate with relevant community groups, educator and professional associations;
- Advocate in support of state and federal policy related to Black student achievement and fortifying pathways for Black educators; and
- Leverage new and existing state and federal policy and funding, including but not limited to state funding for the Educator Effectiveness Block Grant, as well as new and existing university and community partnerships, to strengthen leadership pathways for Black educators in the District.

Mr. Schmerelson, Dr. McKenna, Ms. Goldberg – Climate Literacy (Res-016-21/22)

Whereas, The students of Los Angeles Unified School District, a majority of which are children of color, suffer disproportionately from the mounting climate crises, especially those who live in L.A.'s neglected city centers, which are becoming more dangerously hot;

Whereas, The pollutants from the freeways and refineries in our neighborhoods increase as the climate gets hotter, causing more students, parents, and teachers to get asthma, heart disease, and diabetes;

Whereas, Drought deepens due to global warming, making our water supplies less certain and more polluted, becoming additional uncertainty for our students;

Whereas, Pandemics like COVID-19, which have killed so many, will happen more frequently because we are destroying the natural habitats of plants and animals;

Whereas, The increasing heatwaves, fires, downpours, and floods are due to burning fossil fuels, which continues despite humanity's understanding, confronting students with increasingly unstable futures;

Whereas, Students' families, cultures, communities, and experiences, as well as their friendships, are resources to face these difficulties;

Whereas, Students' social and emotional health is supported by experiences in nature on schoolyards, parks, beaches, or trails;

Whereas, Our students' mental and emotional health must be supported by learning about the climate crises, thinking through solutions for themselves, and by taking part in climate solutions to be implemented in their surroundings;

Whereas, Schools can teach these deep considerations since they are strategically placed as the "beating hearts of communities," preparing students for the millions of jobs in the rapidly expanding green economy and for the work of realigning civilization to nature's flows;

Whereas, With proper support, all teachers can infuse climate themes into all subjects, well beyond STEM, all of which affect culture and governance;

Whereas, Ongoing support and coordination are required at various levels to rapidly improve and increase climate teaching, especially because climate is highly related to equity, and both subjects are complex and emotionally and politically fraught; and

Whereas, The District has monies from both federal and state government that are specifically directed at improving schools' ability to address equity and climate in curricula, money that must be spent in 3 to 5 years; now, therefore, be it

Resolved, That the Los Angeles Unified School District commits to transforming our teaching of climate change to meet the scale and urgency of the crises by implementing, infusing, and developing climate change education across all curricula, and in every grade PK-12, a commitment that will require the allocation of significant resources;

Resolved further, That the District will develop, streamline, and expand outdoor education with the goal of within three years having every student, every year, participate in an outdoor experience which includes climate literacy instruction;

Resolved further, That the District will create a comprehensive, flexibly constituted, school- and community-based Climate Curriculum Implementation Task Force to coordinate all these efforts, which meets quarterly and as needed, and meetings should include public input;

Resolved further That the District's Climate Curriculum Implementation Task Force will have working groups that will coordinate resources allocated to school greening, gardening, outdoor education, and clean energy efforts and create a Districtwide effort that will include (i) staff development (including Schoology integration) using California climate curricula *across all disciplines*, (ii) curricula development where needed, especially for climate justice lessons, local issues, trauma-informed activities and (iii) streamlining and expanding outdoor education and school greening at the District level; and (iv) organization of a resource repository and its promotion through Schoology Climate Literacy groups, folders, and resources;

Resolved further, That existing staff in each Local District, Community of Schools, and in every school, be designated as a Climate Champion who will monitor how climate literacy is built into language acquisition, math, science, history/social studies, health, and other core subject areas; and, be it finally

Resolved, That the District commits to creating and funding positions in each Local District, Community of Schools, and every school to develop and implement the above programs.

Dr. McKenna, Mr. Schmerelson – Celebrating February as Children’s Dental Health Month
(Res-018-21/22)

Whereas, The Los Angeles Unified School District is committed to providing a safe school environment that promotes the health and well-being of children and, as the second largest ~~and~~ district in the nation, is also in a key position to play a leadership role in advancing coordinated preventative health care;

Whereas, Tooth decay is the most common chronic disease in children, despite the fact that it is almost entirely preventable;

Whereas, Dental disease disproportionately affects disadvantaged and minority children and leads to impaired academic performance;

Whereas, Current research supports the value of cost-effective preventative care in lowering rates of dental decay in children, and better health is linked to improved academic performance;

Whereas, A study from the Children’s Dental Health Project in 2009 found that District students with active, untreated dental disease are absent an extra two days of school each year compared to students without dental disease;

Whereas, Between 2013 and 2016, the L.A. Trust Oral Health Initiative worked with District nurses and over 40 providers to screen 25 schools and found that rates of active, untreated dental disease were 65 percent among early education students, 64 percent of elementary school students, and 80 percent of middle and high school students;

Whereas, Assembly Bill 1433 (the “Kindergarten Mandate”) was enacted in 2006 to reduce the number of schoolchildren with dental disease, recognizing that tooth decay is preventable and that California’s schoolchildren experience oral disease at a much higher rate than school children in other states. The Kindergarten Mandate requires kindergarten and first grade students to present proof of having received an oral health assessment in the previous 12 months, directs public schools to notify students’ parents or legal guardians of the assessment requirement, and directs all school districts to report certain data collected under the Kindergarten Mandate to the office of education of the county in which the school district is located (see California Education Code Section 49452.8);

Whereas, Recent studies have found that many families of children affected by dental disease are unaware of the risks of dental disease;

Whereas, The most effective way to reduce dental disease in children is through education, early screening and preventative treatments such as fluoride, varnish, and sealants, because once dental disease has progressed, the only treatment option is expensive restorative care;

Whereas, School nurses do not currently perform visual dental checks on students, even though visual inspection is often sufficient to identify early dental caries;

Whereas, Taking action to reduce the rate of dental decay in students can foster an improved environment for children's learning;

Whereas, February is nationally recognized as Children's Dental Health Month to raise awareness about the importance of oral health;

Whereas, Children's Dental Health Month is a vehicle to promote healthcare education and utilization in our schools and offers an excellent opportunity to encourage dental exams for students; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District recognizes the importance of preventative healthcare, particularly preventative dental treatments, as an essential step to ensure equal educational opportunities for all children;

Resolved further, That the Board recognizes the unique position of its schools as the second largest school district in the nation to promote healthcare use and education to its student population, which includes a high proportion of at-risk or otherwise disadvantaged students. The Board further recognizes that good health is a necessary corollary to the ability to receive a proper education and graduate employment-ready;

Resolved further, That the Superintendent work closely with school-site administrators, external organizations, and city agencies to re-affirm its commitment to promote oral hygiene awareness and education throughout the District;

Resolved further, That within 30 days the Superintendent will remind all Local District Superintendents and school principals of the Kindergarten Mandate requirements;

Resolved further, That the Superintendent or their designee will develop, within 60 days, a recommended annual timeline and strategy for school administrators to inform parents of the Kindergarten Mandate, collect data, and report data to the LACOE. The Superintendent will also direct staff to collect and retain this data from schools, summarize and report the results to the Board, and make this information available for interested stakeholders;

Resolved further, That the Superintendent will deliver a report within 90 days that summarizes the existing Kindergarten Mandate data throughout the District from the year 2017 forward and identifies why the District has not reported data to the LACOE for several years. This summary will include suggestions for improvement;

Resolved further, That the Board will re-affirm its commitment to collaborate with the L.A. Trust, community partners, providers, and advocates to promote the L.A. Trust Oral Health Initiative, including the annual L.A. Trust Tooth Fairy Convention;

Resolved further, That the Board recognizes February as Children's Dental Health Month; and, be it finally

Resolved, That the Superintendent will work with all schools of the District to recognize and celebrate Children's Dental Health Month through educational activities and outreach.

MISCELLANEOUS BUSINESS

DISCUSSION OF BOARD OF EDUCATION REPORT NO. 181 – 21/22
 A-G Completion Grant: Creating Pathways and Opportunities to
 Graduating College and Career Ready

The following speakers addressed the Board:

Trasey Nomachi, Venice High School
 Corina

Ms. Alison Yoshimoto-Towery, Chief Academic Officer, stated that this item is for discussion only and will be acted on at the February 8, 2022 Regular Board meeting.

Ms. Yoshimoto-Towery stated that there are three components to college and career readiness: students graduating having completed their A-G requirements with a grade of C or better, graduates being prepared when they arrive to their post-secondary experience, and finally that they persist and complete their post-secondary experience.

Dr. Carol Alexander, Director, A-G Intervention and Support, reviewed the background of the grant. The District has been allocated \$41.8 million of the A-G Completion Improvement Grant. The District’s proposal aims to allow all students to be eligible by increasing the number of students, including low income, English Learners, students with Disabilities and foster youth who graduate completing A-G courses with a “C” or better; to be high achieving and competitive by increasing access to academic programs and services to strengthen college and career competency; and to be prepared to persist by employing resources and tools to support and monitor achievement of postsecondary aspirations.

Key elements of this plan are the enhancement of data systems to improve monitoring and inform action steps; increasing collaboration with partners to provide supplemental support and services for students, families, and staff; increasing knowledge and access by empowering stakeholders via workshops, training and outreach; and data collection and evaluation that monitors the impact of grant activities to inform replication of programs, resources, and results.

Dr. Alexander reviewed key dates associated with the grant.

Remarks were heard from Dr. McKenna and Ms. Yoshimoto-Towery regarding instruments to measure student success, inadequate funding, effective instruction, leveraging multiple funding sources to support Board goals and evaluation of program implementation.

Remarks were heard from Mr. Schmerelson, Dr. Alexander, and Ms. Yoshimoto-Towery regarding career readiness.

Remarks were heard from Ms. Goldberg, Superintendent Reilly, and Ms. Gonez regarding opportunities for further discussion of the item. Ms. Goldberg requested further information on the relationship between dual enrollment, AP and honors classes; career-technical programs at all high schools; budget and staffing; equitable master scheduling; and English Learners, students with disabilities, and foster youth.

Remarks were heard from Ms. Ortiz Franklin and Ms. Yoshimoto-Towery regarding evaluation, metrics, data, and soft skills.

Remarks were heard from Ms. García and Ms. Yoshimoto-Towery regarding the path to recovery, benchmarks, and achievement.

Remarks were heard from Ms. Gonez regarding implementation of Board goals.

SPECIAL REPORTS

RECEIPT OF THE 2020-21 ANNUAL AUDITED FINANCIAL REPORT (028-21/22)

The Board received the report.

ADJOURNMENT

Dr. McKenna moved that the meeting be adjourned in memory of Fernando Arroyo, police officer and District alumni and Steve Schapiro, photojournalist. Mr. Melvoin seconded the motion, which by general consent was adopted.

The meeting was adjourned at 6:49 p.m.

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APPROVED BY THE BOARD:

MS. KELLY GONEZ
PRESIDENT

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MS. AMANDA WHERRITT
EXECUTIVE OFFICER OF THE BOARD